

Criminal Misc.No. 13296-B of 2014.

Javed @ Jaidi

The State etc.

31.10.2014 Mr. Mehram Ali Bali, Advocate for the petitioner.
Mr. Muhammad Naseem Akhtar, DDPP and Muhammad Safdar, SI along with record for the State.
Mr. Muhammad Tanveer Mansha, Advocate for the complainant.

The petitioner seeks post arrest bail in case FIR No.234/2012 dated 11.03.2012 under sections 302/148/149/34 PPC, Police Station Shadbaag, Lahore.

2. Brief facts of the case as per FIR are that the complainant, his father, uncle and PWs went to the house of the accused party for taking machines or its price, whereupon the petitioner and his co-accused flared up and they caused fire arm injuries upon Muhammad Siddique-father and Abdul Ghafoor-uncle, who subsequently succumbed to the injuries. Hence, this case.

3. Arguments heard and record perused.

4. It is observed that the first bail application (Crl.Misc.No.8972-B of 2013) of the petitioner was dismissed on merits vide order dated 08.10.2013 of this Court, thereafter, the petitioner filed instant petition on the ground of statutory delay in trial. Before, I revert to deal with the obtaining factual matrix and the eloquent claim made by the petitioner, I feel it appropriate to call for report from the learned trial court. From the report, it reveals that the accused-petitioner is responsible for

delay in the trial. The petitioner refused to get charge sheeted in absence of his counsel and in this regard he took approximately 23 adjournments. The accused-petitioner was causing the learned trial court to refrain from doing its legal duty. It is admitted fact that delay is a known defence tactic, although delay in trial goes against the interest of prosecution. Therefore, in every case, when the right of speedy trial is alleged to have been infringed, the question arises that who is responsible for the delay? In this regard all the time taken in perusing the proceedings cannot be treated as delayed tactics nor such time is counted towards delay. From the perusal of the report of the learned trial court, it reflects that the accused side has created hindrance and the delay in the trial is result of the non-co-operation of the accused side and in such like situation the petitioner shall not be entitled to get the benefit on the ground of delay in trial.

5. Considering the above factual position the role played by the petitioner and the period of delay thus caused absence of any role of the prosecution, thus I am of the considered view that the petitioner is not entitled to be enlarged on bail. Resultantly, the application for bail stands rejected.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

*Tariq